

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.28923 of 2023

Sonia Mahjabin and others
.... Accused-Petitioners

-Versus-
The State

.... Opposite Party
Mr. Shah Monjurul Hoque, with
Mr. Md. Salim Ashraf Chowdhury, Advocates
.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
... For the State

Heard and Judgment on 13.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioners should not be enlarged on bail in Gulshan Police Station Case No.02 dated

01.10.2021 corresponding to G.R. Case No.287 of 2021 under Sections 420/406 of the Penal Code, 1860 now pending in the Court learned Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that accused petitioner Sonia Mahjabin and other co-accused persons started E-commerce business in the name E-Orange company declaring sale and delivery of electronics and customer goods and motorcycle at 50%-75% discount rate. The informant and witnesses of this case purchased above goods for delivery paying an amount of Tk.54,24,938/- but the accused petitioner and other co-accused persons closed their business and fled away without making any delivery of above goods.

Mr. Shah Monjurul Hoque, learned Advocate for the petitioner submits that petitioner is a house wife and she has a kid. The husband of the petitioner was a director of above company and co-accused of this case. The petitioner was arrested

in connection of this case on 17.08.2021 but the case has not yet been ready for trial.

The learned Advocate produced two orders passed by two other Division Bench of this Court passed in Criminal Miscellaneous Case Nos.47311 of 2022 and 48560 of 2022 respectively granting ad-interim bail to petitioner Sonia Mahjabin in G.R. Case No.354 of 2021 and G.R. Case No.374 of 2021 and submits that the nature, character and facts of above two G.R. Cases are similar to those of this case in hand.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

This case involves the cheating of the general people in the name of E-Commerce. The case has been filed by a victim of above cheating. On conclusion of investigation police has

submitted a charge sheet in this case but the case has not yet been ready for trial.

The petitioner is a woman and she is in custody in connection of this case since 17.08.2021.

It turns out from the order dated 25.07.2023 passed by another Division Bench of this Court in Criminal Miscellaneous Case No.47311 of 2022 and order dated 20.09.2022 passed by another Division Bench of this Court in Criminal Miscellaneous Case No.48560 of 2022 that the petitioner has been granted ad-interim bail in two other G.R. Cases of the same nature.

On consideration of above materials on record we find substance in this petition under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute.

Let accused petitioner Nos. 1. Sonia Mahjabin, wife of Mashuqur Rahman and 2. Mashuqur Rahman, son of Md. Nasir Uddin be enlarged on ad-interim bail for 06(six) months with condition that they would surrender their passport to the trial

Court below. The accused petitioners shall also execute a bail bond to the satisfaction of the learned Judge of Chief Metropolitan Magistrate, Dhaka.

The concern Court is at liberty to cancel the bail, if the accused-petitioners misuse the privilege of bail

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER